

# Comparative Electoral Management

Performance, Networks and Instruments

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## **4 Evaluating electoral management performance** The PROSeS framework

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## 4 Evaluating electoral management performance

### The PROSeS framework

#### 4.1 Introduction

How should we assess electoral management? The previous chapter reviewed the existing approaches that have been developed to measure the quality of electoral management and the sources of evidence that could be used in doing so. It suggested that democratic theory provided an important starting point, however, a more finely detailed approach was needed. This chapter sets out a new comprehensive approach for auditing the performance of electoral management, designed to enable cross-country analysis called the PROSeS framework.

After a review of the rival approaches that are used to evaluate public sector performance in general, five dimensions of EMB performance are set out which are argued to be crucial for achieving democratic ideals in an electoral democracy. The aim is to set out these dimensions, and the sources of data that can be used by researchers to assess whether they are achieved. The UK and Canada are then assessed against the framework so that the utility of the model becomes clear. The concepts and framework also act as founding principles for the remainder of the book.

The model is developed to enable a close comparative study between a small number of cases. A comparison of as few as two countries, the chapter argues, enables useful insights about their comparative performance which take context into consideration. Although quantitative cross-national comparisons involving a large number of cases often much prized amongst large segments of academia, this can lead to a tendency to measure what is measurable and quantifiable rather than what is important. Concepts and measures can become confused and conflated during data reduction processes. The needs of the practitioner looking to improve elections in their own country are put secondary to the need of the researcher looking to create ‘rigorous’ statistically significant models. Frameworks quickly lose themselves in intangible languages of academese. Where large  $n$  data are available and appropriate on some measures, it is used to contextualise individual performance, but not to remove the meaning of individualised cases.

## 4.2 Approaches to assessing public administration

There are two broad approaches to evaluating performance that are usually used within public administration (Boyne 2002). The first is the ‘economy-efficiency-effectiveness’ (3Es) model. This prescribes that services should be *economical* in the sense that minimal levels of resources should be spent securing each unit input. *Efficiency* usually refers to the cost per unit of output (e.g. an hour of teaching). *Effectiveness* commonly refers to whether service objectives have been achieved. Given the finite amount of resources available to the public sector, all of these are important criteria and should be part of any model used to assess electoral management.

The second is the ‘inputs-outputs-outcomes’ (IOO) model, which includes everything present in the 3E model, but also a broader set of criteria that the 3E model overlooks. The efficiency with which *outputs* are created are therefore considered, but so too is the quality of the service. Additional criteria might include the speed of delivery or accessibility for different groups. When the service *outcomes* are considered, it is not just the effectiveness for achieving a single policy goal that the policy maker has in mind. Instead, they should consider the broader *impact* such as whether additional jobs are created in other industries. In addition, the model suggests that we should consider the *equity and fairness* of the provision and whether some groups are likely to benefit more than others.

### 4.2.1 Going beyond existing approaches

Boyne (2002), however, argues that both approaches remain too limited in their approach for assessing public services for three reasons. Firstly, these models give no value to the preferences of the public. For him, ‘[s]ervices that are efficient and formally effective may be of little value unless they meet public demands’ (p. 18). The responsiveness of public services to the demands of citizens and their representatives should therefore be included in any evaluation criteria. This approach has obvious importance for evaluating elections. Low levels of public confidence in electoral machinery could lead to an erosion of confidence in the democratic process. Equally, if concerns are raised by pressure groups about the quality of electoral management, then this could have profound consequences.

Secondly, Boyne argues that the IOO model is insufficient because it gives ‘no voice’ to internal stakeholders – the employees of organisations themselves. This is intuitively important because we know, from research elsewhere, that low levels of staff satisfaction can have negative consequences for the likelihood that an individual would quit (Tzeng 2002) but also that organisational outcomes such as customer satisfaction, productivity, profit, employee turnover (Harter, Schmidt, and Hayes 2002).

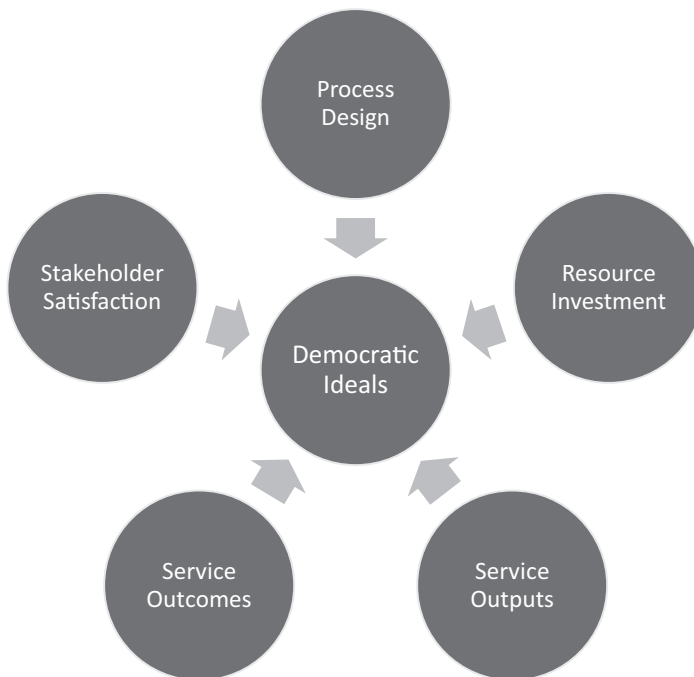
Thirdly, the IOO approach only considers organisations as service providers. But EMBs are institutions which form part of the democratic state and therefore should be evaluated according to whether they ensure public participation, probity and accountability. Boyne’s framework is a significant advance on earlier frameworks for evaluating the performance of public organisations. It provides much added value as an alternative approach for evaluating electoral management. It is therefore adapted here for that purpose.

Drawing from the literature in the previous chapter, the international literature on electoral management and the author's practical experience of dealing with stakeholders, it is argued that there are other areas that a framework based within public administration theory might want to include. In the next section, Boyne's framework is adapted so that it can be applied to electoral management.

### 4.3 The PROSeS framework for assessing electoral management

This chapter sets out the PROSeS framework to assess electoral management. Figure 4.1 shows that the framework is anchored around the five clusters of process design, resource investment, service outputs, service outcomes, stakeholder satisfaction, which all lead into the realisation of democratic ideals.<sup>1</sup>

As the last chapter argued, we need some higher-order normative principles to appeal to. This is especially important given that this book uses a realist approach – because critical realism argues that research should be critical of the world and be used to improve it. Equally, the book appeals to a tradition within public administration which seeks to bring about 'enlightened prescription' because of 'the symbiotic relationship between knowledge and action, theory and practice' (Evans 2007, 128). The book follows David Beetham (1994)'s focus on a democratic society as one where two key principles of political quality and popular control of government are achieved (see Chapter 2). These principles are then broken down into a number



*Figure 4.1* The PROSeS framework.

of other ‘distinct, albeit overlapping, dimensions’. These include the desire for open and transparent government. These are taken as the overarching goals which electoral management is seeking to contribute towards the realisation of.

Achieving any lofty principles, however, requires high-quality public administration. What measures should be used?

#### **4.3.1 *Decision-making processes***

Firstly, we should focus on the decision-making processes in place in electoral management bodies. This book has argued that electoral officials are public service providers and therefore we should assess them in similar ways to other public services. But if we are trying to achieve democratic values, then these values should run through the decision-making processes inside EMBs themselves. Following Boyne (2002, 19), we should value public and impartiality, participation, probity and accountability in decision making:

- *Public participation* within public services has increasingly been a subject of scholarly interest, as academics have considered how democratisation can take place *within* the administrative state (Kathi and Cooper 2005). Instruments such as elections for public officials, citizen consultations or citizen-led decision making have been piloted (Greer et al. 2014; Kathi and Cooper 2005; Lowndes, Pratchett, and Stoker 2001, 2006; Parkinson 2004). Constitutional Assemblies have been established in some countries involving citizens and have been shown to cause people to change their views and therefore provide some deliberative democracy within public services (Suiter, Farrell, and O’Malley 2014). Public participation has both normative value and instrumental value. The normative value is that citizens have a right to have their voices heard. The instrumental value is that it can improve efficiency and effectiveness but also help to build political communities. We will consider public involvement in decision making in more detail in Part III of this book. There are reasons to be cautious about public involvement in running elections because partisan control of the electoral rules is usually thought to be problematic. However, we should recognise the intrinsic moral value in inclusive decision making.
- *Probity and impartiality* by electoral officials is self-evidently essential. As Boyne describes it, probity involves the ‘proper use of public funds and the absence of fraud by politicians and officials’ (Boyne 2002, 19). Impartiality requires that public servants do ‘not act in ways that advantage or disadvantage the partisan-political interests of any political party, including the governing party or parties’ (Aucoin 2012, 179). Electoral officials should discharge their functions without resort to personal gain and should not deliberately give any candidate or party undue advantage. The distinction made in the previous chapter between failures of steering and rowing is useful, however. An individual electoral official may give a candidate or party an advantage by simply following the rules from which this advantage derives. In such circumstances, blame will not necessarily lie with the individual.
- *Accountability mechanisms* for redress should be in place so that if there are suspicions that electoral fraud has taken place, there should be swift, decisive

and accessible methods for investigating and remedying this. This is dealt with elsewhere in the literature on electoral justice and is not therefore discussed in detail here. However, in the management and implementation of the electoral process, there should also be redress for the citizen who feels that their vote was not counted or there were problems at polling stations. A minimal level of service would involve a clear process through which they can lodge complaints and expect a timely response and remedial action. This could be about election day, but also at other stages of the electoral cycle such as with the status of an electoral registration application. Effective electoral justice and dispute resolution will require the accurate collection of information about the delivery of election – so good electoral management will require that that this is collected.

#### 4.3.2 Resource investment

No public service can be provided without resource investment of some kind. Printing ballot papers, paying officials to staff polling stations, hiring helicopters to transfer ballots from remote areas and providing additional security: it all costs money. It is therefore essential that there is sufficient investment in electoral democracy for elections to function properly and democratic ideals to be achieved.

It is helpful to distinguish between different types of costs. The commonly cited categories are based on a report co-sponsored by UNDP and IFES in 2005 called the Cost of Registration and Elections (CORE) (López-Pintor and Fischer 2005), but a slightly different typology is suggested here in Table 4.1.<sup>2</sup>

*Table 4.1* Type of electoral investments needed to ensure high-quality electoral management

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*Sustained investments.* Some costs will be sustained throughout the duration of the electoral cycle. An EMB will need to have some permanent officials in place regardless of whether it is an election year. There will be ongoing processes such as voter registration infrastructure (unless it is not a periodic process), the buildings which the EMBs work in and sustained utility costs.

*Event-related investments.* Some costs will be related to a single electoral contest – the holding of a referendum or election. On the day of the election, there will be additional costs for the officials to staff polling stations, the hiring of premises etc.

*Security investments.* Some costs will be for security or the integrity of the election.

These traditionally have been thought to fall in or around election day, where extra police may be required to secure polling stations. However, threats may emerge at other points. Cyber threats, as illustrated by the alleged Russian interference in the 2016 US Presidential election will need to be guarded against. Security investments may therefore be event-related or sustained investments.

*Campaign investments.* Some democracies provide candidates or parties with free postage, airtime or resources at another part of the electoral cycle. These will need budgeting for but are separate from the main costs.

*Project investments.* Most costs are tied to a point in the electoral cycle and are therefore cyclical in nature. However, there is another way in which the timing of some costs should be conceptualised: project time. A major reform might be introduced that may take several years to implement. This may therefore cover two or three electoral cycles and might raise costs during implementation. Projects may also have unanticipated costs which continue into the longer term. Chapter 9 provides a case study of where this happened in the UK.

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Chapter 12 provides information on EMB budget sizes in a range of countries. This shows considerable variation – but budget size cannot be used as a direct measure of electoral management quality. For example, if country A spends more money than country B – does this mean that elections are taken more seriously? Or that money is spent less efficiently?

There is some useful literature on best practices in budgeting, set out by organisations such as the OSCE (2015b) and the IMF (2014). Space doesn't permit a full review, but some core principles that should apply to EMBs are:

- *Sufficiency.* As has already been noted, It is important that EMBs are provided with sufficient resources for them to be able to deliver the election or the quality of electoral management can be undermined.
- *Transparency.* Open transparent accounting for the income and expenditure of EMBs is important for at least three reasons. Firstly, it increases confidence amongst stakeholders that money is being spent appropriately. Secondly, it provides for accountability as an EMB can be criticised for the misuse of funds. Thirdly, it allows lesson drawing. EMBs with similar demographic characteristics can compare budgets to see whether they have sufficient funds. This can allow them to lobby for more – or look for ways to spend money more efficiently. Partly for these reasons, financial transparency is a much-prized practice within democracies and banking systems. *The Financial Transparency Code* was devised by the IMF (2014) to set out best practices for transparency which includes the coverage, frequency and timeliness, integrity and quality of information.
- *Sustainability of funding.* Elections are an ongoing process, as the electoral cycle illustrates. Short-term and lump-sum investment may be required to overcome immediate pressures or cash restraint. But it is important that funding is available over the longer term. Donors or overseas governments invest into the electoral process in the short term to get elections up and running but what about the longer term? It is helpful to think in terms of *administrative time* rather than civil time as we more commonly think of it. The electoral cycle usually evolves over a period of around five years. But there are also projects that will require budgets that will take place over a period of time that is different to the electoral cycle. For example, an EMB may decide to change the voter registration process to introduce a new national electoral register but this will take several years. During this time several national or local elections may take place. Sustainability therefore requires thinking about where costs fall with respect to the electoral cycle and ongoing projects.
- *Legitimacy of funding.* Having multiple sources of funding is sometimes necessary to ensure sufficiency and sustainability. Donors such as governments or NGOs may decide to provide direct assistance to the election. Money may even come from private sector sources. Some sources of income could be seen as illegitimate in the eyes of the public and other stakeholders, however. This is most likely to be a problem in transitioning democracies where it could be considered as 'outside interference' or 'Western Imperialism'. The donation of funds from overseas organisations may undermine the electoral process as a result and affect other outcomes.



- *Contingency.* Unexpected things happen. Inflation can suddenly change costs, perhaps in response to global shocks such as rises in oil prices or geo-political stability. Trade unions may mobilise to bring demands for higher wages. Equipment can be damaged through floods, technology may need to be updated and additional polling stations may be needed due to population rises or the building of new housing developments. Risk management plans are therefore essential to ensure that shock rises to costs can be covered.

#### 4.3.3 Service output quality

As all public sector management frameworks suggest, the quantity and quality of service outputs need to be measured. Measuring the quantity of outputs is relatively straightforward. All activities undertaken to register citizens to vote, provide them with voting facilities and count the votes can be quantified. In addition, activities that seek to encourage citizens to register to vote and participate could be included alongside any voter education work. Some key examples are provided in Table 4.2.

However, we need to think further about what good *quality* services would look like. Four criteria are suggested here:

- *Convenience.* In some countries registering to vote and voting is much more convenient for the citizen than in others. Complex ID requirements might be required at polling stations, voting hours might be restricted and EMB websites may provide limited information about how to register to vote. There is an instrumental reason for why convenience matters: it can affect voter turnout. Political science theories of political participation based on rational choice institutionalism have long argued that making voting an easier process will increase turnout since it reduces the costs of participation (Wolfinger and Rosenstone 1980). Although there are limits to rational choice theory (Blais 2000) the effects of calculus is acknowledged in other approaches (Peters 2005). There are also many empirical studies that provide support for this although the effects can sometimes be relatively small (James 2010a, 2011a, 2012). Electoral registration and voting procedures should therefore be convenient as voting provides public good. Just as the state encourages greater health care by seeking to develop health care preventative interventions, such as vaccines or taxes on alcohol and tobacco to tilt behaviour, the state has an equal responsibility to make voting convenient to tilt behaviour where possible.

However, a second argument for convenience is that it has value in and of itself. As a matter of principle, government services should be convenient for the individual citizen. Service convenience is valued within the private sector for example, (Berry, Seiders, and Grewal 2002) and it should equally be so within the electoral process. It is relatively easy to check and compare procedures between states to consider where the electoral process is made more convenient for voters.

- *Accuracy.* Services should be provided without error. When electoral stationery is printed it should be done without misprints. Poll workers should not misdirect voters and counting staff should not miscount votes. Technology,

Table 4.2 The PROSeS matrix for evaluating electoral management

| <i>Dimension of performance</i> |                                     | <i>Focus</i>                                                                                                                                                                                         |
|---------------------------------|-------------------------------------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| Process Design                  | Public participation                | The involvement of citizens and groups in the design of electoral management processes                                                                                                               |
|                                 | Probity and impartiality            | The proper use of public funds and the absence of fraud by electoral administrators                                                                                                                  |
|                                 | Accountability                      | Redress for errors such as miscounting, rejection of paper or long polling queues. Provision of key information on services such as availability of key performance data, financial information etc. |
| Resource Investment             | Transparency                        | There is transparency in the income and expenditure of EMBs with open access to data                                                                                                                 |
|                                 | Sustainability                      | The electoral processes have stable and sustainable funding arrangements                                                                                                                             |
|                                 | Legitimacy                          | The funding of the electoral process is seen as legitimate by actors                                                                                                                                 |
| Service Output Quality          | Contingency                         | Preparations are made for unexpected events                                                                                                                                                          |
|                                 | Convenience                         | The ease by which citizens can register and vote                                                                                                                                                     |
|                                 | Accuracy                            | Whether elections are delivered with precision and without error                                                                                                                                     |
| Service Outcomes                | Enforcement                         | Rules are enforced                                                                                                                                                                                   |
|                                 | Efficiency                          | Cost per unit of production                                                                                                                                                                          |
|                                 | Formal effectiveness                | Voter turnout; registration accuracy and completeness; cases of electoral fraud; rejected ballot papers; service denial; violence                                                                    |
|                                 | Equity                              | The distribution of registration and turnout rates by gender, age, race, income, geographical area and other dichotomies                                                                             |
|                                 | Diffuse impact                      | The broader positive and negative side effects such as levels of civic engagement, creation of databases useful for providing other government services                                              |
| Stakeholder Satisfaction        | Cost per unit of service production | Cost per registration and vote cast                                                                                                                                                                  |
|                                 | Citizen satisfaction                | Citizen satisfaction with the services provided and confidence in the electoral process                                                                                                              |
|                                 | Staff satisfaction                  | Levels of staff satisfaction                                                                                                                                                                         |
|                                 | Stakeholder satisfaction            | Satisfaction from parties, media and wider civil society in the electoral process                                                                                                                    |

such as punch card machines or electronic voting equipment, should accurately record the intentions of the voter.

- *Enforcement.* Administrative or legal rules need to be enforced or political equality will be undermined. If polling stations are required to close at 7pm then they should close at 7pm. If polling clerks are required to ask all citizens for voter ID, then they should do so. To do otherwise would undermine the principle of political equality because citizens, parties and candidates would be treated unevenly.
- *Efficiency.* It is often argued that providing electoral officials further resources will lead to better run elections (Clark 2014; James and Jervier, 2017) and, by logical extension, more resources should be provided to improve elections. However, electoral officials, like all public servants, are required to work with finite sources. Just as an unlimited number of beds and nurses can't be provided to hospitals, there are limits on the budgets and number of staff available to electoral officials. The efficiency of electoral services is vital and it is the *optimal* allocation and use of resources that should be achieved and not the maximal. Different definitions of efficiency are useful. Boyne usefully distinguishes between two forms of efficiency (Boyne 2002, 17–18). Technical efficiency is a measure of the *cost of each output*. For example, the cost of providing 300 polling stations can be calculated. However, we could also calculate the *cost of each outcome*. For example, how much was spent on polling stations per the number of people who voted in them.

#### 4.3.4 Service outcomes

Evaluating service outcomes involves assessing the effectiveness of service outputs. What did they lead to? Profit, share value and revenue are usually the key performance indicators of success for private companies. When it comes to the implementation of the electoral process then the following are important:

- *Voter turnout.* Low turnout can undermine popular control of government because low levels of political engagement signal weakened accountability mechanisms. If turnout is disproportionately lower amongst some groups, then it will undermine political equality because the winners of electoral contests might not be representative of the interests of the electorate as a whole. This is one key performance indicator, however, that any EMB has relatively little control over. There are a huge number of factors that determine levels of voter participation (Smets and van Ham 2013). Nonetheless, if we are to assess the quality of electoral management, then levels of voter turnout should be included. Variations between similar polities, and within geographic areas/groups in those polities, may indicate that EMBs could and should undertake action to remedy situations.
- *The accuracy and completeness of the electoral register.* The accuracy of the electoral register has been usefully defined as the extent to which

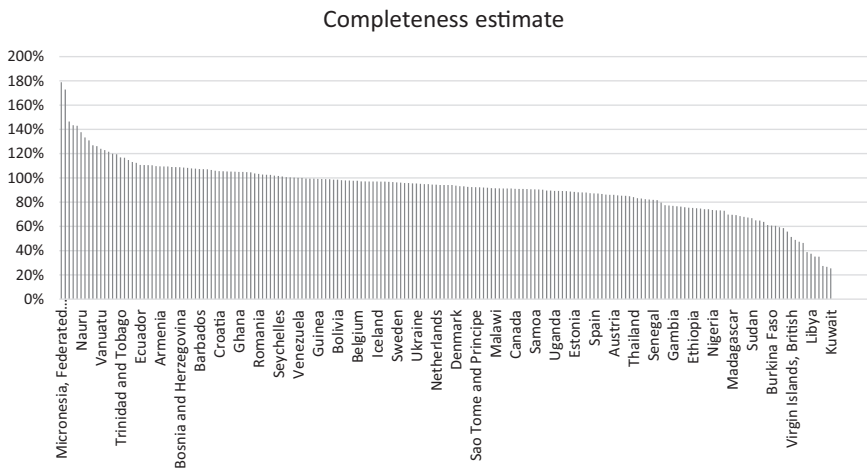


Figure 4.2 Completeness of the electoral register estimates around the world in 2017.

Source: Author based on data from International IDEA.

there are ‘no false entries on the electoral registers’ (Electoral Commission 2016b, 5). Accuracy is therefore the measure of the percentage of entries on the registers which relate to verified and eligible voters who are resident at that address. Inaccurate register entries may relate to entries which have become redundant (for example, due to home movement), which are ineligible and have been included unintentionally, or which are fraudulent. The completeness of the electoral register, meanwhile, is the extent to which every person who is entitled to be registered, is registered. The electoral register should include all citizens eligible to vote. The reality, however, is that a combination of organisational, demographic and political factors combine to mean that millions of electors are often incorrectly registered or missing from the electoral rolls entirely. This is a major problem because studies of election day have found that many people are turned away from polling stations because their names are not on the register (Clark and James 2017). Calculating the completeness of the electoral register is not easy, however. A simple calculation can be derived by dividing the number of names on the electoral register by the estimated eligible electorate. In many countries, however, there is no central population registrar so population estimates have to be used. The advantage of this measure is that it is quick and easy to calculate (James and Jervier 2017a). Figure 4.2 below uses data on the numbers on the voter registry and the voting age population from the International IDEA Voter Turnout Database, for the last parliamentary election for which data was stored as of December 2017. It demonstrates

an enormous variation in implied levels of completeness from 178.9 per cent for the Micronesian 2017 parliamentary election, to 25.4 per cent for the Kuwaiti 2016 parliamentary election. The disadvantage of this measure is that inaccurate or double entries may mask underlying incompleteness. A register might look 100 per cent complete, but 2 million people may have registered twice. Nonetheless, the estimates in Figure 4.2. tell us something: there are problems in Micronesia and Kuwait. If the estimate is above 100 per cent then there are problems with accuracy, if it is below 100 per cent – there are problems with completeness.<sup>3</sup>

- *Levels of electoral fraud.* The ideal delivery of election involves no breaking of the rules by parties, candidates and voters. Electoral fraud, in this sense, is the breaking the legal rules governing the election. Such a definition is limited insofar as the rules themselves may violate democratic principles, as Chapter 2 notes, and a qualitative assessment of the legitimacy of any violation of the laws is therefore required.
- *Rejected ballot papers.* Many votes that are cast at an election are not included in the final result. This could be because voters deliberately spoil their ballot paper in protest, especially in countries where voter turnout is compulsory or the election itself is controversial. However, eligible and considered votes are often not included. This might be because of poor ballot paper design, misinformation or poor voter education, or faulty stationery/election technology. The highest-profile case was the USA Presidential election in 2000. Across the whole country, 1.9 per cent of votes were invalid (Stewart III 2006, 158) but attention focussed on the state of Florida which effectively decided the contest (Wand et al. 2001). The concept of the residual vote was developed on the back of the American experience to measure ‘all ballots cast that did not record a vote. . . . In a mechanical sense, a vote can fail to be counted either because there was no vote . . . on an individual’s ballot (an ‘undervote’) or multiple marks (an ‘overvote’)’ (Stewart III 2006, 159). Rates can be compared across and within countries to identify unusually high rates which might be indicative of problems. An analysis of data from the International IDEA Voter Turnout Database reveals that between 1945–2017 the global mean proportion of invalid votes cast was 2.1 per cent, with a range rates as high as 44.4 in the 1995 Parliament election in Peru. Focussing only on those countries in which voting is not compulsory and are Free, according to Freedom House, Saint Lucia’s 1979 Parliamentary election recorded the record high of 19.9. The French 2017 Presidential election was not far beyond with 11.5.<sup>4</sup>
- *Service denial.* Service denial is when an eligible citizen attends a polling station, but is not given a ballot paper. This may often be because they have not completed the necessary paperwork such as registering or have the requisite form of identification. The ‘fault’ therefore may technically lie with the citizen in an administrative sense. However, there is a burden on

the administrative machinery to make the bureaucracy involved in voting minimal and communication clear. The lines of causation are therefore more complicated and qualitative interpretation might be needed. Polling station incident reports, social media data, poll worker surveys and post-election surveys of citizens can help to identify the frequency, nature and causes of these denials.

- *Violence.* The case of Kenya 2007 demonstrates why we would want, elections to be free of violence (see Chapter 1). While the realisation of democratic values is important, the loss of life is of central importance. Again, violent clashes between competing groups or the sabotage of polling equipment are often outside of the immediate control of the EMB – at least in the short term (Höglund 2009). But these problems also emerge from a political context in which the EMB is involved. In the more conceptual language used in Chapter 2, EMBs are agents within a structural context. No discussion can therefore be had about electoral management quality without a consideration of violence and intimidation.

Effectiveness involves more than an assessment of these measures, however. We should also consider:

- *Equity.* A significant variation in outcomes by gender, ethnicity, disability or other social cleavage also generates political inequality, which should be considered.
- *The diffuse impact* on other government services. If a service has negative effects on other departments by making them inefficient then this matters too. For example, heavy investments in security on election day may need to be met by the police or armed forces.
- *Cost per unit of service production.* Efficiency is also important at the level of the outcomes. For example, what was the cost per registration and vote cast?

#### **4.3.5 Stakeholder satisfaction**

Accepting Boyne's arguments for including service *responsiveness* in to measures of success, which were set out above as an important corrective to the IOO model, means that EMBs should be assessed by their levels of satisfaction among stakeholders. The key stakeholders include:

- *Citizens.* Satisfaction amongst citizens is probably the most important. If citizens feel as if the election is not well run then they may come to question the result, or the broader system. Democratic consolidation might be threatened or broader support for the political system will be undermined. Surveys of citizens can be used to ascertain this.

- *Staff*. Levels of satisfaction amongst staff working in EMBs has rarely been considered in the assessment of electoral management. (see: James, 2019) Staff satisfaction matters for instrumental reasons, however. The effects are commonly thought to include improved retention and performance. There are also moral reasons: organisations have a duty of care towards their employees. Surveys and focus groups of workers can be used to research this.
- *Parties and civil society*. Whether political parties, candidates, pressure groups and other non-state actors have confidence that electoral processes are functioning well can have profound consequences for the stability of the system. If political parties decide not to accept electoral results then protests and physical conflict can ensue. Acceptance of the results of elections by losers and the peaceful transition of power is a defining feature of democracy for many scholars (Przeworski 1999). Confidence in the electoral process amongst stakeholders is also important because they are cue setters for the public, who may not know much about the electoral process themselves (Vonnahme and Miller 2013). Any measure of the EMBs' performance cannot be reduced to the views of stakeholders. Politicians might criticise EMBs as a political strategy to excuse their defeat, knowing that the processes are running smoothly. Opposition politicians will often seek to make political capital out of criticising the government's management of the electoral process. Pressure groups have a duty to be critical and incentives to be overly so to grab headlines. As a result of this, it is difficult to separate their real views from their stated views (see Chapter 2 on realism). Nonetheless, it is part of the job of EMBs to build confidence amongst stakeholders, so this remains an important part of the measurement.

#### 4.4 Applying the PROSeS model: comparing Canada and UK

This chapter now applies the framework, summarised in Table 4.2, to the cases of Canada and the UK. An assessment is taken of the overall system of electoral management over the period 2013–2018. Canada and the UK are chosen because they are both relatively stable and mature democracies but with different EMB structures: one centralised, one decentralised. This makes analysing two cases a relatively simple task which is helpful because this is the first application of the model set out above. The focus is on national general elections. The cases were constructed through an analysis of secondary resources including EMB documents, available polling data, news stories and other available information, as set out in Chapter 3. Many documents were taken from the EMB websites in March 2018, which means that the analysis also reflects information available at that moment in time.

##### 4.4.1 Process design

There are few direct ways in which citizens are given an input into the design of the implementation machinery to ensure *public participation*. Both countries are parliamentary democracies and have select committee systems in place. In the



UK, there were occasional select committee enquiries about aspects of electoral management and members of the public are able to submit evidence and have done so. Government white papers also provide opportunities to submit evidence. The Canadian system provides a more direct mechanism for public involvement because the legislation goes through committees, who can propose amendments. Committees can call witnesses to inform their work – and individuals are encouraged to submit written briefs and can even request to appear before a committee (Parliament of Canada 2018). In practice, there is little public participation, however. In the Canadian Standing Committee on Procedure and House Affairs (2017) review of Bill C-23 (that became the Fair Elections Act), 80 witnesses were heard. But these were all expert or NGO representatives. Neither country has any history of providing any deliberative forum for citizens. That said, both Elections Canada and the Electoral Commission have undertaken regular surveys of citizens asking about their satisfaction with the system, which are well cited in their own research work. Elections Canada also set up an Advisory Group for Disability Issues in advance of the 2015 polls consisting of disability advocacy groups (Elections Canada 2018a).

No concerns have been raised about the *probity or impartiality* of electoral officials. While there are occasional cases of electoral fraud (see below), neither country has seen any serious improper conduct by electoral officials themselves – or bias towards any candidate. The OSCE Observation report from the 2015 Canadian Election praised Elections Canada for ‘professional performance, impartiality and transparency’ (OSCE 2015a, 6). The OSCE raised no concerns in this respect about the UK 2015 general election (OSCE/ODIHR 2015b).

There are mechanisms for delivering *accountability* in both systems, although they are complex, and in the case of the UK, slow, inaccessible and lack transparency. Three organisations were responsible for handling complaints within Canada. Citizens were asked to report problems with the administration for elections to Elections Canada. Complaints about automated calls or online advertising needed to be reported to the Canadian Radio-television and Telecommunications Commission. The Commissioner of Canada Elections was the independent officer whose duty it is to ensure that the key legislation, the Canada Elections Act and the Referendum Act, are complied with and enforced. The Commission had powers to contact the Director of Public Prosecutions who might instigate prosecutions (Elections Canada 2018b, 2018c). It may also, however, draw up a compliance agreement. Whenever the Commission had reasonable grounds to believe that an individual was about to commit or had committed a violation of the Canada Elections Act, it could draw up a voluntary agreement with them so that they take the actions necessary to ensure compliance with the Act (Commissioner of Elections Canada 2018a, 2018b).

The process was even more fragmented and confusing in the UK. The Electoral Commission had a clear complaints page on its website, but it referred citizens to their local authority Returning or Registration Officer for issues relating to electoral registration, voting or polling station issues (with different arrangements in Scotland and Northern Ireland) (Electoral Commission 2018b). Local Electoral



Registration Officers (EROs) and Returning Officers (ROs) can pass on evidence of electoral fraud to the police. The Crown Prosecution Services are then responsible for taking actions. Accountability systems are weakened by the fact that Returning and Registration Officers were exempt from freedom of information requests because they are not a public authority under the Freedom of Information Act 2000. Nor is it clear how EROs and ROs process complaints and no data is available on how many they receive. Meanwhile, the only way in which the result of an election can be contested in the UK was by formal legal proceedings called election petitions. Petitions could be raised by candidates if there an error made by an election official such as the inaccurate counting of the votes, or if there is an electoral offence committed by an opposing candidate or their agent. The petition would then be heard in an open court, presided over by a judge without a jury. The court can declare the election void or another candidate elected (Electoral Commission 2012a, 6–8). The system of raising an election petition, however, was heavily criticised by the Electoral Commission and senior members of the legal profession. Firstly, the system was not seen as accessible or transparent for many candidates wishing to lodge complaints. The initial cost alone of a parliamentary petition was over £5,500. This is especially problematic when unclear electoral law made it difficult for candidates to be certain that they would be likely to be successful. Costs might therefore increase substantially if a case proceeds to a hearing. Returning Officers or the Electoral Commission were not able to bring forward cases on behalf of candidates, despite being well placed to do so because of their knowledge and expertise. Secondly, the process was time-consuming. Complex cases can take nearly two years before a decision is made. Cases where an inadvertent error is made by an electoral official can even take many months for a case to be processed. In the meantime, the declared winner remains in office and there is political uncertainty for the electorate, candidates and parties (Electoral Commission 2012a).

#### ***4.4.2 Resource investment***

Financially transparent EMBs should publish their accounts openly online. Elections Canada did provide detailed quarterly financial reports online, in order to fulfil legal requirements set out in the Financial Administration Act. The online accounts make the quarterly spending and the annual budget clear; \$70.4 million was spent in 2017–2018 (Elections Canada 2017b). Budgeting and expenditure was much less transparent in the UK, mostly because funding is split across so many different organisations (see: James and Jervier 2017b, 6–7). Central government pays for the cost of running an election in Westminster, European and Police and Crime Commission elections, even though local Returning Officers organise the election. For these contests, the amount that the Returning Officer can reclaim (a ‘Maximum Recoverable Allowance’) is set out in a statutory instrument of Parliament. But how much of this has been claimed has not been routinely published. The costs of running Welsh and Scottish elections have been borne by the Scottish and Welsh Parliaments. Local authorities in England and

Wales cover the costs of compiling the electoral register (but it is organisations called Valuation Joint Boards and a Chief Electoral Officer for Northern Ireland in Scotland and Northern Ireland respectively). The Electoral Commission has published the costs of organising referendums for which it is responsible (Electoral Commission 2012c), and has published a one-off study of the cost of electoral administration across the UK (Electoral Commission 2012b) – but there is no routine place to identify costs. Transparency was therefore much greater in Canada, and a general inference might be that transparency is easier when electoral management tasks are centralised into one or a smaller number of organisations. The absence of transparent information in the UK led to newspaper headlines claiming that Returning Officers were receiving ‘cash bonuses’ (Braiden 2016a, 2016b; Kerr 2016). A parliamentary inquiry followed in Scotland which led to calls for reform (Local Government and Communities Committee 2017). We might therefore also extrapolate that transparency can assist popular confidence in the electoral process.

Both the Canadian and UK systems are relatively robust in terms of *sustainability*. They are both funded by public spending and are therefore not reliant on external actors. However, it is important to note that the UK struggled with a public sector deficit since the financial crisis of 2007–2008. This sent public sector debt to 10.1 per cent of GDP in 2010 (OECD 2017). The central government response to this was to reduce public expenditure, which has placed some uncertainty on electoral officials, especially following the introduction of individual electoral registration (see Chapter 9). Canada has also faced public spending pressures, however, with a deficit persisting from 2009–2016 (OECD 2017).

The Canadian system seems to have better practices in place to cover *contingency*. The Elections Canada financial statements provided statements on risks and uncertainties. The end-of-quarter report for 30 September 2017 included a statement about how the number of electoral events could affect expenditure, but also how a new public sector pay system had made some salaries unaccounted for (Elections Canada 2017b). No such statements were found in the decentralised UK system. It is unclear whether the sharing of costs across so many organisations provides greater flexibility – or makes coordinated and effective planning impossible.

There is no reason for concern about *legitimacy* of the funding for elections in either case, since in both cases it is entirely funded by the taxpayer through public finances.

#### **4.4.3 Service output quality**

*Convenience* is the first assessment criteria for output quality. Voter registration was much more convenient in Canada. UK electoral registration has always been an individual rather than state responsibility. The principle was further embedded in 2014 with the switch from household to individual electoral registration (see Chapter 9). Each citizen was required to provide their National Insurance

Number at the point of registration and their details were checked against a government database before their name was added to the register. Canada also moved from household to individual electoral registration in 1997. However, a system of automatic registration was established at the same time. A National Register of Electors was constructed using publicly held records such as tax agencies, motor vehicle agencies, immigration authorities and local electoral registers. This national database is then used to construct voter registers at the beginning of federal elections and referendums (Black 2000; Elections Canada 2017a). Canadian citizens had an additional level of convenience: they could register at polling stations on election day. In 2015, 777,000 did so – 5.8 per cent of all election-day voters. Elections Canada concluded that: ‘This indicates that many electors continue to prefer the “one-stop-shop” approach of registering and voting at the same time’ (Elections Canada 2015a, 17). In the UK, citizens had to register 11 days in advance of the election. Many registrations missed the deadline and were therefore presumably citizens (186,000 in 2015, 174,000 in the 2017 election).<sup>5</sup> This is roughly equal to two and a half electoral constituencies – all of whom would have been unable to vote.

Both countries operate online electoral registration. The UK system was introduced in 2014. In Canada it became available on a nationwide basis for the first time at the 2015 general election (Elections Canada 2015a, 15). In both countries it was enormously popular (Elections Canada 2015a, 16). One area where the UK has greater convenience is that it registers ‘attainers’ – those citizens who will be eligible to vote within the life of a register i.e. 16- and 17-year-olds (but 14- to 15-year-olds in Scotland where 16-year-olds can vote in some elections). Canada did not register ‘attainers’ because Elections Canada can’t legally obtain or store data until a Canadian citizen is 18 (Elections Canada 2015a, 15, also see: Garnett 2019a).

The voting process was also more convenient in Canada. UK polling traditionally takes place on a Thursday between 7am–10pm although citizens could register in advance for a postal vote. There are also options, in limited circumstances, for proxy voting. Pilots were undertaken for advance voting and some electronic methods between 2000–2007, but these were not carried forward (James 2011a). By comparison, Canadian citizens could vote for 12 hours on the day of the election and also opt to vote by mail. Canadians were also presented with opportunities for advanced voting (on the 10th, 9th, 8th and 7th days before election day) (Elections Canada 2019). Where Canadian voting was less convenient was with Voter ID provision. In contrast to the system in Britain (but not Northern Ireland) where citizens need only state their name in a polling station, Canadians had three options. They can either show a single piece of identification with their name, address and photograph on it. Alternatively, they can provide two documents, both with their name, and at least one with their address. A third option involves an elector showing two documents with their name and having another citizen attest for their address (Elections Canada 2015a, 26). The Fair Elections Act 2014 eliminated the use of voter identification cards and citizens ‘vouching’ for each other (OSCE/ODIHR 2015a, 2).

Concerns were raised in Canada about the *accuracy* and *enforcement* of rules after a legal dispute in the electoral district of Etobicoke Centre in May 2011. It was claimed that the result of the election should be ‘null and void’ as a result of procedural ‘irregularities’ (Superior Court of Justice 2012). Elections Canada commissioned an independent sixth-month review of the problem of ‘non-compliance’ with rules and standards afterwards. This involved a nationwide audit of poll documentation. This claimed to show ‘that problems associated with compliance in the Etobicoke Centre riding were not unique’ (Neufeld 2013, 6). In fact: ‘[o]verall, the audit estimated that “irregularities” occurred for 1.3 percent of all cases of Election Day voting during the 2011 federal election’ (Neufeld 2013, 6).

Elections Canada commissioned Price Waterhouse Coopers to undertake a compliance audit of poll worker practices at the 2015 general election. This found that election officials exercised their powers properly, although there were some inconsistencies in the administration (e.g. record-keeping) for electors who had special procedures – those who registered on the day or had to give an oath (Elections Canada 2015a, 44–6). The UK saw some cases of maladministration hit the news. For example, 1,500 people were unable to vote in Newcastle-under-Lyme in the 2015 general election, in a constituency that saw the successful MP win by only 30 votes. An independent report found that there was ‘inadequate performance by inexperienced and under-resourced elections office staff’ (BBC News 2017). Similar nationwide audits to those undertaken in Canada have not taken place, however, because the decentralised nature of UK electoral administration means that there is no power or duty of Returning Officers or Electoral Registration Officers to undertake them. It is therefore difficult to get an overall picture. However, it is clear from the cases that problems with electoral management do routinely occur, even in established democracies and that the centralised system in Canada can bring greater transparency by ordering such audits to assess performance.

#### **4.4.4 Service outcomes**

When assessing *formal effectiveness* of service, turnout is a good starting point. As Figure 4.3 illustrates, turnout in both countries have seen a long-term decline in parliamentary elections, despite a small recent upward trend in the most recent contests. Turnout is substantially lower amongst younger age groups, however. In the 2015 Canadian elections, turnout was over 20 percentage points lower amongst the 18–24 age group than the 65–74 age group (Elections Canada 2015a, 31). Similar patterns are present in the UK, despite talk of there being a ‘youthquake’ in participation the 2017 general election (James 2017; Sloam and Henn 2018). There are also disparities by indigenous citizens in Canada (Elections Canada 2015a, 32). Variations in turnout have been documented in the UK by geographical region and professional class (Denver 2015). Turnout at sub-national elections has been substantially lower (Dempsey 2017).

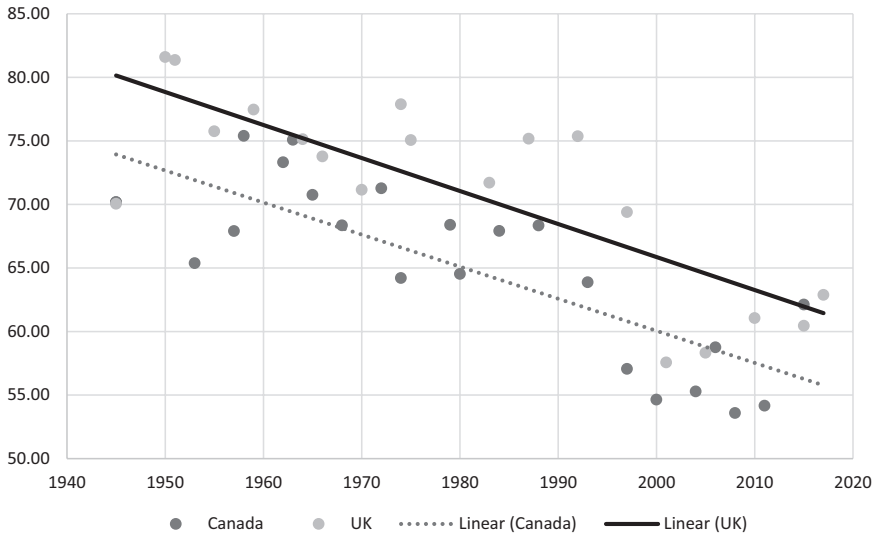
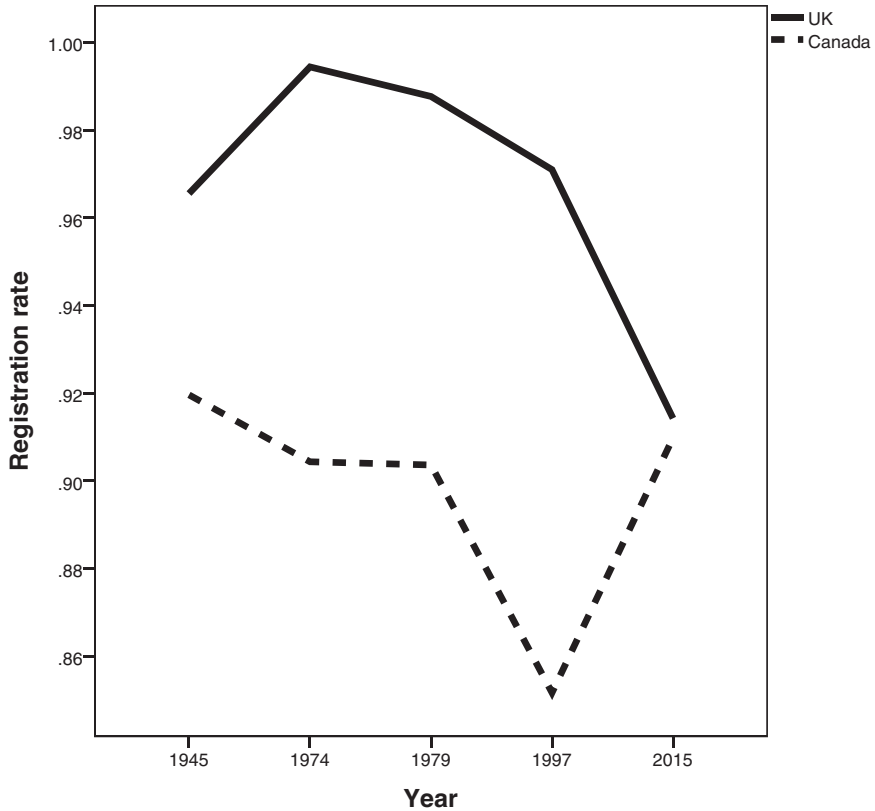


Figure 4.3 Voter turnout at parliamentary general elections in the UK and Canada.

As was noted earlier, there are a variety of factors that shape voter turnout, above and beyond EMBs. However, post-election surveys often ask citizens for their reasons for not voting which is often due to the electoral process. Elections Canada surveys show that half of non-voters didn't participate in the 2008, 2011 and 2015 elections due to 'everyday life issues' such as being too busy, out of town, ill or limited by a disability. Another 8 to 11 per cent didn't participate because of what was defined as 'electoral process' issues such as not being able to 'prove an identity or address, transportation problems, a lack of information about when and where to vote, not being on the voters list or issues with the voter information card' (Elections Canada 2015a, 33). Similar figures were reported after the UK 2017 general election (Electoral Commission 2017b).

Figure 4.4 provides crude estimates of the completeness of the electoral register, calculated by dividing the names on the electoral register by the eligible voting population. In both countries there was a substantial decline after 1945 in completeness. The figure suggests that this was partly reversed in Canada in the late 1990s, however, which was around the time that the National Register of Electors was introduced, suggesting that this was hugely successful at boosting completeness. More precise, but infrequent, studies give a closer picture. The UK Electoral Commission estimated, based on a study which involved canvassing properties to check whether individuals living there were correctly registered, that the December 2015 parliamentary register was 86 per cent complete, and 91 per cent accurate (Electoral Commission 2016b,



*Figure 4.4* Estimates of the completeness of the electoral register in the UK and Canada, 1945–2015.

Source: Author calculations based on data in International IDEA (2018).

6). Elections Canada gave estimates that the October 2015 register was 88.3 per cent complete and 94 per cent accurate (Elections Canada 2015a, 18).<sup>6</sup>

Both countries have therefore had similar levels of performance with respect to completeness. They also exhibit problems with equity. At the 2015 Canadian General Election, only 60 per cent of 18-year-olds were registered, compared to over 90 per cent for other age groups. Likewise, completeness rates were 65 per cent for 18- and 19-year-olds in the December 2015 register, compared to 96 per cent for the over 65s. The Electoral Commission study also provided more detail by revealing the register to be less complete in urban areas (especially within London), amongst recent movers and private renters, Commonwealth and EU nationals, non-white ethnicities, lower socioeconomic groups, citizens with mental disabilities and young people (Electoral Commission 2016b, 8–11).<sup>7</sup>

A further measure of service outcomes is the number of *rejected ballots*. Figure 4.5 below shows levels of rejected ballots at parliamentary elections since 1945. Rates have dropped considerably in the UK since the 1950s, leading to very low levels – much lower than in Canada where rates have historically varied, but also been in decline since the mid-1990s. These rates are considerably below global averages. The rejected ballot rates at other types of elections are much higher in the UK where different electoral systems are used.

Both systems have been hit by concerns and headlines about electoral fraud. In the UK, high-profile cases of electoral fraud have caught the headlines. An elected mayoral candidate in London and/or his agents were found guilty of a range of

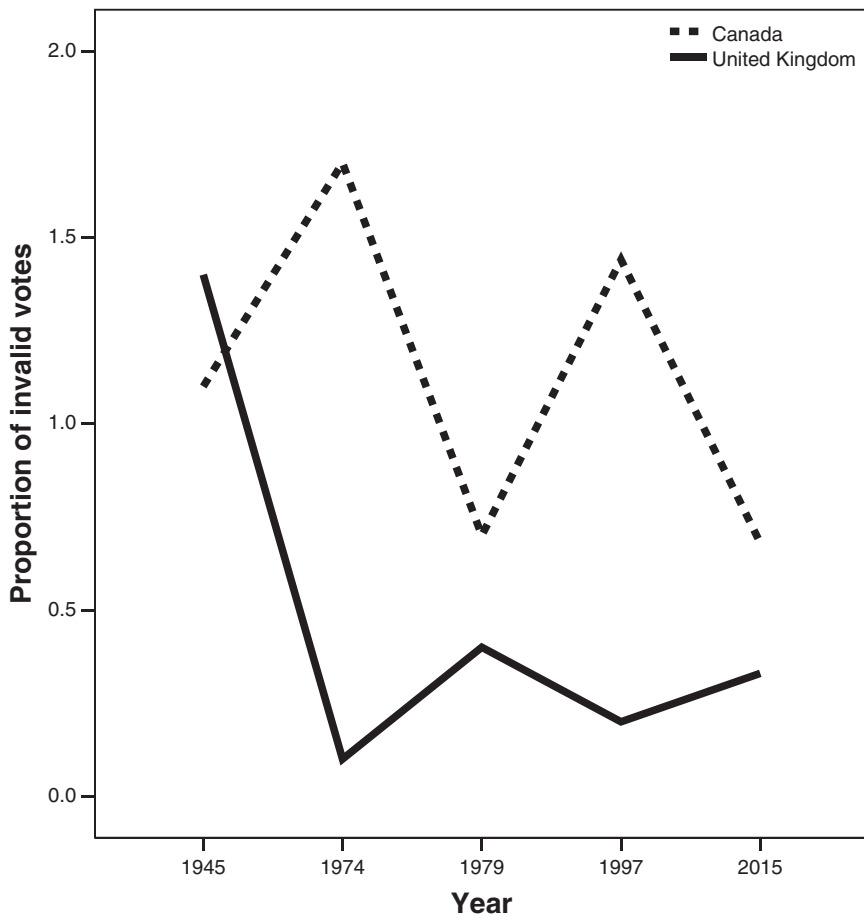


Figure 4.5 Percentage of votes cast that are invalid at general elections, 1945–2015.

Datasource: International IDEA (2018).

offences including personation, postal vote fraud, illegal employment of paid canvassers, bribery and undue spiritual influences (Pickles 2016, 65). Accusations of electoral fraud have become increasingly common since 2000. There was an average of 298 allegations of electoral fraud per year between 2010 and 2017.<sup>8</sup> Despite the headlines and accusations, however, only a small proportion of these led to prosecutions or convictions since most were resolved locally, individuals were acquitted or sufficient evidence was available. In 2017, for example, there was one prosecution and eight police cautions (Electoral Commission 2018a, 7). Less than 1 per cent of polling officials were concerned that electoral fraud had taken place in their polling station at the 2015 general election (Clark and James 2017).

In Canada, international headlines were caught by the Robocall scandal, in which phone calls were made to citizens, typically giving them false information about the location of their polling station (Pal 2017). There have also been some high-profile claims from politicians that voter fraud takes place at polling stations. However, little evidence of this has been brought forward and in one case a Conservative MP subsequently retracted his claims that he had witnessed voter fraud, after a formal complaint to the Commissioner of Elections Canada about what he had said (Wingrove 2014a). Overall, there were only 22 cases of charges that were laid between 2011–2017 under the Canada Elections Act and Referendum Act 2011 (Commissioner of Elections Canada 2018a). Compliance Agreements were more frequent and there were 54 over the same period of 2011–2017 (Commissioner of Elections Canada 2018b).

*Service denial* involves legitimate citizens trying to cast their vote but being unable to. The first ever UK poll worker survey was run at the 2015 general election and demonstrated that there was a small, but significant proportion of citizens attending polling stations but being unable to vote, presumably because they were not registered. Two-thirds of polling stations turned away at least one voter (Clark and James 2017). Similar patterns were reported at the Brexit referendum in 2016 (Clark and James 2016a). Given that election-day registration was possible in the Canadian 2015 general election, this problem was not apparent there. Voter ID requirements, however, led to some people being unable to vote. Nearly all electors (99 per cent) said that they were able to meet the ID requirements, but a quarter of candidates witnessed citizens experiencing problems. The inability to prove identity or address was cited by 2.7 per cent of non-voters as the reason for not voting. This would equate to roughly 300,000 people. Canadians also reported variation in wait times in 2015. The average wait was 12 minutes according to a post-election survey. However, this was less for election-day voters (9 minutes) and more for advance voters (21 minutes). The 2015 election was the first time that this information was recorded (Elections Canada 2015a, 23) and similar data are not available in the UK.

*Cost per unit of service production* is the final level of performance to be considered in this section. Table 4.3 provides estimates of the amount spent per voter in two general elections in each country that were calculated by the author.<sup>9</sup> Data about the expenditure in Canada was taken from the Elections Canada Annual Financial Statements. Data from the UK was taken from a survey of electoral



Table 4.3 Estimates of expenditure per eligible voter and per vote cast (figures in US\$)

|                | 2010/2011 |          | 2015   |          |
|----------------|-----------|----------|--------|----------|
|                | \$/VAP    | \$/Votes | \$/VAP | \$/Votes |
| Canada         | 10.51     | 19.41    | 13.71  | 22.07    |
| United Kingdom | 5.22      | 8.57     | 4.65   | 7.68     |

administrators undertaken in 2016 (James and Jervier 2017a).<sup>10</sup> International IDEA's voter turnout database was used to identify the Voting Age Population (VAP) and the number of votes cast at each election. A calculation was made for the cost per person in each currency. The 2010/2011 figures were then adjusted for inflation at the 2015 rate using the respective national bank websites. All figures were then converted into US dollars as of 3 April 2018 using the website [www.xe.com/currencyconverter/](http://www.xe.com/currencyconverter/).

On the basis of Table 4.3, the UK seems to demonstrate a higher level of efficiency. It is also noticeable that Canada saw the costs of running elections substantially rise between these two general elections. In comparison, expenditure *fell* in the UK. It should be noted that arguments have been raised that UK electoral officials have been under-resourced in recent years (James and Jervier 2017a). But it does suggest that efficiency per unit of outcome is higher.

### *Satisfaction*

Neither country features in the World Values Survey and an exactly comparable measure of *citizen satisfaction* is not available, but EMBs have regularly run their own surveys of citizens after each general election that provide reasonably reliable and useful measures. The UK Electoral Commission has also run a 'Winter Tracker' survey, which reports end-of-year confidence levels in the electoral process. Satisfaction levels were generally better in Canada. Taking *registration* first, the UK Electoral Commission surveys undertaken between 2008 and 2016 found that anywhere from 75 to 85 per cent of respondents were satisfied with the process of registering to vote (Electoral Commission 2018c). Satisfaction was marginally higher following Canada's 2015 election, where 88 per cent were satisfied with the registration process that they used (Elections Canada 2015a, 16). This was a major increase on 2008 and 2011. The difference between countries with the *voting process* is more significant. After the 2015 Canadian election, 96 per cent were very satisfied or somewhat satisfied with the voting experience (Elections Canada 2015a, 21). Earlier Elections Canada surveys only asked more precise questions about satisfaction with waiting times, the distance to the polling station and electoral officials, which were all above 96 per cent in 2008 and 2011 (Elections Canada 2011, Appendix 3). In contrast, satisfaction with the voting process varied between 64 and 77 per cent in the UK between 2006 and 2016 (Electoral Commission 2018c). When asked what would increase their satisfaction with

the voting process, respondents in 2016 cited more information on the parties and candidates' standing and their policies (31%), a proportional voting system (23%), internet voting (17%), increased security against electoral fraud (17%) and more information on how the voting process works (5%) (ICMUnlimited 2016). Greater convenience might therefore help but there are concerns about electoral fraud, despite the fact that there are few cases. Between 42–45 per cent of people agreed that there could be 'enough electoral fraud in some areas to affect the election result' in the annual 'Winter Tracker' surveys between 2012–2016, although only 7 per cent thought electoral fraud was common 'where I live'. Half of respondents thought that there was sufficient safeguards to prevent electoral fraud, a quarter did not (ICMUnlimited 2016). The problem of fraud is therefore largely a perception-driven one.

In terms of *accessibility*, nearly all Canadian voters (98 per cent) said that it was easy to reach the polling station in 2011 (Elections Canada 2011). Considerable efforts were made to improve accessibility, which included a checklist of 35 accessibility criteria being issued to Returning Officers. Most (96 per cent) but not all of polling places met these criteria (Elections Canada 2015a, 24). Complaints were still made about disability access – with 18 per cent of complaints made to Elections Canada focussing on this (Elections Canada 2015a, 29). A third of voters with disabilities stated that wheelchair signs were not visible (Elections Canada 2015a, 25). The UK Electoral Commission has historically collected less information about disability. However, its report on the 2015 general election found that 5 per cent of people with disabilities were dissatisfied with the voting process. This was higher than 2 per cent for those without a disability. Concerns were also raised in civil society groups (Electoral Commission 2015, 47–8). Efforts to improve accessibility include detailed guidance to Returning Officers – but, unlike in Canada, there is no system to monitor enforcement. Following this, a call for evidence was launched by the Commission asking for information about disabled voter experiences. This brought a wealth of qualitative information with examples such as citizens finding polling stations too narrow or pencils hard to hold (Electoral Commission 2017a). In 2018 a poll worker survey of the local elections found that 14 per cent of poll workers did encounter a disabled voter having a problem completing their ballot paper (Clark and James 2018). Persistent problems therefore seem to exist in both countries.

Information on *staff satisfaction* at the poll worker level is available in both countries, revealing general contentment. Elections Canada collected information about job satisfaction among their poll worker staff in 2016. Most (95 per cent) were content with the working conditions, although officers who worked in the advance poll were significantly more likely to report working conditions were 'not at all good'. Of those who were not happy, the commonly cited causes were a lack of a break, the place of work, the number of hours worked or the complexity of unique cases. Salary and equipment were much less likely to be cited (Elections Canada 2015b). The first poll worker survey in the UK, which was undertaken by academics at the 2015 general election, found staff generally content about

their training and administration of the election and their experience of being a poll worker – with 97.9 per cent saying they were likely to work as a poll worker at the next election (Clark and James 2016b, 2017). Data is also available at the middle-manager level in the UK, however, which as Chapter 11 sketches out, did reveal some difficult workplace conditions including stress and a high proportion of staff considering leaving their posts in early 2016, following the transition to individual electoral registration. There has been no similar survey in Canada.

Concerns about voter fraud have been raised *amongst stakeholders* in the UK, often along partisan lines. On the back of a high-profile case of electoral fraud in the Tower Hamlets mentioned above, a Conservative Councillor from the area, Cllr Peter Golds, prominently called for action to stop fraud (Golds 2015). A right-wing think tank published a report claiming that electoral administration ‘has long been, and remains, remarkably shoddy’ and that ‘there remains within the various bodies responsible for electoral administration a culture of complacency and denial’ (Pinto-Duschinsky 2014, 6). Left-wing groups such as Hope Not Hate and democratic reformists such as the Electoral Reform Society, Bite the Ballot and parliamentary inquiries, meanwhile, raised concerns about whether democratic engagement was being hindered by restrictive voting practices (Hope Not Hate 2015; James, Bite the Ballot, and ClearView Research 2016; Select Committee on Political and Constitutional Reform 2014; Select Committee on Political and Constitutional Reform 2015).

In Canada, ‘for the most part stakeholders are happy, but every once in a while there are storms’ (private interview, senior electoral official, July 2018). Most significantly, there were concerns about vulnerabilities for electoral fraud which led to the Conservative government’s enactment of the Fair Elections Act, which prohibited vouching and the use of the voter information card as a valid piece of identification. Concerns were then raised amongst civil society groups, academics and parties on the left that this could restrict opportunities to vote. An open letter from 19 professors was signed and sent to *The Globe and Mail* arguing that the Act would ‘undermine the integrity of the Canadian electoral process, diminish the effectiveness of Elections Canada, reduce voting rights, expand the role of money in politics and foster partisan bias in election administration’ (Wingrove 2014b). A court case was raised to challenge the constitutionality of these changes by the Canadian Federation of Students and the Council of Canadians, but the Liberal government of Justin Trudeau also introduced bill C-76 to undo most of the Fair Elections Act (Bryden 2018). One other area of concern, which diminished over time, was the use of enumerators to knock on doors to register voters. This practice was gradually ended by Canadian EMBs. Elections Canada conducted its last nationwide enumeration in 1997. By October 2017 only Elections Manitoba was undertaking full enumerations because of challenges with costs and the declining efficiency of the tool. Concerns have been raised by some candidates and party organisers that the register was not as complete and accurate as it could be and that Canada should ‘go back to the old way of doing things’ (private interview, electoral official, 2018). However, these concerns receded over

time (Larkins 2017). Democracy Watch, meanwhile, raised concerns about ethics and conflict-of-interest issues; and the National Citizens Coalition has been active on campaign finance roles arguing against an egalitarian law. However, these are slightly outside of the remit of this case study.

## 4.5 Conclusions

This chapter has sought to develop a new framework for assessing electoral management by developing concepts used to assess public services and apply them to the elections. The new framework, the PROSeS model, has then been applied to the two initial cases in order to demonstrate its utility and tease out problems applying it.

The model has the advantage of identifying comparative strengths and weaknesses of systems across countries, which is sensitive to the quality of information available and contextual circumstances in which electoral officials are functioning. This produces useful academic knowledge about whether democratic ideals are being realised and the quality of public administration. However, it can also be used to inform practice and improve policy. The assessment can be based on the best available evidence and can therefore be undertaken where there are not a large sample of experts, which is a pre-requisite for other approaches.

A UK–Canada comparison reveals many similarities in terms of performance. However, the Canadian system seems to demonstrate clearer systems of accountability in the process design, greater transparency with resource investment, more convenient services, less frequent service denials to voters, and higher satisfaction with citizens. The UK system seems to be delivered more economically and efficiently, has fewer rejected ballots and hasn't exhibited the same accuracy enforcement issues that the Canadian system has – but this might be for a lack of critical examination. A general lesson might be that centralised systems are better positioned to produce more transparency and accountability – but are more costly. Yet further cases and applications of the approach would be needed to generalise in such a way.

There are several potential criticisms of the model that should be taken head-on. The first is that there are too many variables, too few cases – a classic criticism of behaviouralist political science (Lijphart 1971, 686). Can we please crunch this into a single figure to provide more parsimonious country-level scores? As Chapter 3 noted, there are lots of advantages in that – but we miss out on important information about the quality and historical development of electoral management in all of the different areas. Comprehensiveness, detail and context allows policy makers to identify the nature of important problems that are lost in a simplistic score. Researchers are prevented from identifying important underlying causal relationships.

Related, a criticism might be that we have too many dependent variables here – how can we examine all of these? Again, the purpose of the book is to point out the importance of electoral management – and identifying all of the important

dimensions is necessary to achieving that task. This is not to stop future researchers picking one aspect of performance as the dependent variable, whether it is the completeness of the electoral register or the extent of financial transparency, and tracing the causal relationships involved. However, a country-level assessment of electoral management should involve an assessment of all of these.

Lastly, surely an assessment of all of the dimensions is unrealistic? How would we find all of the data? Even within this chapter, data is missing on important aspects of performance from two relatively open and transparent democracies. While this is true, the absence of information forms part of the assessment. An approach that is based on a discussion and analysis of whether principles have been achieved is also much more sustainable and transferrable than a method that requires long-term research funding for repeated rounds of surveys to draw out lessons.

The chapter has therefore set out a new broad set of measures to assess performance. The remainder of the book will explore the challenges in achieving this and what can be done to improve it.

## Notes

- 1 Boyne's categories of outputs, efficiency, outcomes, responsiveness and democratic outcome were renamed for simplicity.
- 2 The term 'investment' is used instead of 'cost' as a rhetorical switch to show the positive importance of this funding to society. The term 'diffuse costs' that was used by IFES – referring to costs borne by other organisations – is dropped because the organisation that pays is not important – they are all costs to the taxpayer. Lastly, it is important to separate out project costs as reforms to the electoral process may involve short-term costs (see Chapter 9 for a case study of this). I am grateful to participants of the workshop hosted by International IDEA to design a new Building Resources for Democracy, Governance and Elections (BRIDGE) module on the financing and budgeting of elections, in Stockholm, November 2017. These collaborative discussions helped to inform some of the work here.
- 3 The most advanced method for checking completeness and accuracy would include house-to-house enquiries or telephone enquiries to check the completeness of the register against the data collected. This would be the most reliable method but would be expensive and only a sample of households could be checked. Other methods might include comparing the register with other nationally held data such as censuses, health records or private sector information. The downside of these approaches is that they assume that these alternative records are more complete and accurate than the register itself.
- 4 International IDEA Voter Turnout Database, date accessed 27 February 2018.
- 5 Data was collected by the author from the Cabinet Office Electoral Registration Dashboard: [www.gov.uk/performance/register-to-vote](http://www.gov.uk/performance/register-to-vote) on 30 March 2018.
- 6 Note that Elections Canada uses the terms 'coverage' and 'currency' rather than completeness. For Elections Canada, 'coverage is the proportion of eligible electors (Canadian citizens aged 18 and over) who are registered'. 'Currency' is 'the proportion of eligible electors who are registered at their current address' (Elections Canada 2015a, 18). The concept of currency is therefore closer to that used by the Electoral Commission, which is used in this book.
- 7 For more on the UK registers, see: James (2017).

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- 8 Calculation based on Electoral Commission (2018a, 6).
- 9 Both countries held general elections in 2015. Canada's 41st general election was held on 2 May 2011. The UK held a general election on 6 May 2010.
- 10 This data currently doesn't include the costs of the Electoral Officer for Northern Ireland.